IN THE SUPREME COURT
OF THE STATE OF SOUTH DAKOTA

AMBER KAYE CHRISTENSON, ALLEN ROBISH, KRISTI MOGEN, AND PATRICK LYNCH

Appellants,

vs.

CROWNED RIDGE WIND, LLC AND SOUTH DAKOTA PUBLIC UTILITIES COMMISSION STAFF

Appellees.

Supreme Court #29334

APPELLEES' JOINT MOTION FOR LEAVE TO CORRECT CLERICAL ERROR

Appellees Crowned Ridge Wind, LLC and South Dakota Public Utilities Commission Staff hereby move for leave to correct clerical error pursuant to SDCL 15-6-60(a). In support of this motion, Appellees state:

1. This appeal originates from a docket before the South Dakota Public Utilities Commission docketed as EL19-003.
2. Throughout its Memorandum Opinion and Order Affirming Decision, the Circuit Court incorrectly listed the docket number as EL18-003.
3. With the exception of the docket number, all other details including the case name correctly refer and relate to the matter now on appeal to this Court.
4. The incorrect docket number was clearly a clerical error.
5. The settled record has been transmitted to the Clerk of the Supreme Court as of the filing of this Joint Motion.

SDCL 15-6-60(a) provides

Clerical mistakes in judgments, orders, or other parts of the record and errors therein arising from oversight or omission may be corrected by the court at any time of its own initiative or on the motion of any party and after such notice, if any, as the court orders. During the pendency of an

> appeal, such mistakes may be so corrected before the settled record is transmitted to the clerk of the Supreme Court and thereafter while the appeal is pending may be so corrected with leave of the Supreme Court.

Because the settled record has already be transmitted to the clerk of the Supreme Court, it is necessary to seek leave of the Supreme Court in order to have the clerical error corrected.

WHEREFORE, Appellees jointly respectfully request this Court grant leave for the docket number to be corrected by the Honorable Carmen Means, Circuit Court Judge.

Dated this 27th day of October 2020.

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Dated this ____ day of October, 2020.

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CERTIFICATE OF SERVICE

Kristen N. Edwards, an attorney for Staff of the South Dakota Public Utilities Commission hereby certifies that on the 27th day of October, 2020, she electronically filed the foregoing document with the Clerk of the Supreme Court via e-mail at SCClerkBriefs@ujs.state.sd.us, and further certifies that the foregoing document was also e-mailed to:

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Attorney for Appellants

The undersigned further certifies that the original and two (2) copies of the APPELLEES' JOINT MOTION FOR LEAVE TO CORRECT CLERICAL ERROR in the above-entitled action were hand delivered to Ms. Shirley A. Jameson-Fergel, Clerk of the Supreme Court, State Capitol, 500 East Capitol, Pierre, SD 57501 on the above-written date.

/s/ Kristen N. Edwards
Kristen N. Edwards